

GOVERNMENT OF INDIA STATUTORY REGULATORY REPOSITORY

AYURLEX COMPLIANCE HANDBOOK — AYUSH DRUG LICENSING, GMP & AUTHORITATIVE TREATISES

3. AYUSH Drug Licensing, GMP & Authoritative Treatises

Domain Identifier: ayush | Statutory Authority: Ministry of Ayush & State Licensing Authorities (SLA)

Legislative Base: The Drugs and Cosmetics Act, 1940 (Chapter IV-A: Ayurvedic, Siddha and Unani Drugs) read with Drugs and Cosmetics Rules, 1945.

Key Statutory Provisions & Licensing Framework:

- **Section 3(a) — Statutory Definition of ASU Drug:** Defines Ayurvedic, Siddha, or Unani drugs as all medicines intended for internal or external use in the diagnosis, treatment, mitigation or prevention of disease in humans or animals, manufactured exclusively in accordance with First Schedule formulae.
- **The First Schedule — 54 Canonical Texts:** Formally recognizes 54 ancient classical treatises as statutory benchmarks (Charaka, Sushruta, Ashtanga Hridaya, Sharangadhara, Bhavaprakasha, Sahasrayogam, AFI).
- **Product Classification Architecture:**
 - **Classical ASU Medicine (Form 24D/25D):** Formulations identical to First Schedule texts. No clinical trials required; substantiated by canonical citations.
 - **Patent or Proprietary (P&P;) ASU Medicine (Rule 158B):** Formulations containing ASU ingredients but in novel combinations or modern delivery formats. Requires safety and pilot stability data under Rule 158B.
- **Schedule T — Good Manufacturing Practices (GMP):** Mandatory statutory standards for premises, hygiene, storage areas, equipment, quality control testing, and batch release.
 - Mandatory technical staff: Recognized degree in Ayurvedic Medicine (BAMS) or Ayurvedic Pharmacy (B.Pharm Ayurveda).
 - In-house testing laboratory equipped for raw material authentication, foreign matter, total ash, microbial limits, and heavy metals.
- **Statutory Forms & Grants:**
 - **Form 24D:** Application for license to manufacture ASU drugs on own premises.
 - **Form 25D:** Application for Loan License (utilizing an approved third-party GMP facility).
 - **Form 26D:** Certificate of Manufacturing License issued by State Licensing Authority (SLA).
 - **e-Aushadhi Portal:** Central online portal for SLA drug licensing management (e-aushadhi.gov.in).

Optimal RAG Queries for this Dataset:

1. 'What is the statutory definition of an Ayurvedic drug?' → Returns Section 3(a) and First Schedule treatises.
2. 'How do I register an Ayurvedic product in India?' → Returns 4-step statutory licensing roadmap (Classification → Schedule T → Form 24D/25D → Form 26D).
3. 'What are the Schedule T GMP requirements for an Ayurvedic tablet factory?' → Returns square footage, BAMS/B.Pharm staffing, and QC lab mandates.
4. 'What is the difference between Classical ASU and Patent & Proprietary medicine under Rule 158B?' → Returns clinical evidence requirements.